

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

QORVO, INC.,	)	
	)	
Plaintiff,	)	
	)	
v.	)	C.A. No. 21-1417 (JPM)
	)	
AKOUSTIS TECHNOLOGIES, INC. and	)	
AKOUSTIS, INC.,	)	
	)	
Defendants.	)	

[QORVO'S PROPOSED] VERDICT FORM

Instructions: When answering the following questions and completing this Verdict Form, please follow the directions provided and the Jury Instructions that you have been given. Your answer to each question must be unanimous. Some of the questions contain legal terms that are defined and explained in the Jury Instructions. Please refer to the Jury Instructions if you are unsure about the meaning or usage of any legal term that appears in the questions below.

As used herein:

1. "Plaintiff" and "Qorvo" both refer to Plaintiff Qorvo, Inc.
2. "Defendants" and "Akoustis" both collectively refer to defendants Akoustis Technologies, Inc. and Akoustis, Inc.
3. "Asserted Patents" refers collectively to U.S. Patent No. 7,522,018 and U.S. Patent No. 9,735,755.
4. "'018 Patent" refers to U.S. Patent No. 7,522,018.
5. "'755 Patent" refers to U.S. Patent No. 9,735,755.

QUESTIONS AND ANSWERS

We, the jury, unanimously find as follows:

MISAPPROPRIATION OF TRADE SECRETS

Liability – Misappropriation of Trade Secrets

1. Has Qorvo proven by a preponderance of the evidence that Akoustis misappropriated one or more of its trade secrets? *Please check “YES” or “NO” below. (A “yes” answer is a finding for Qorvo; a “no” answer is a finding for Akoustis.)*

YES (Qorvo): _____

NO (Defendants): _____

Compensatory Damages – Misappropriation of Trade Secrets

2. If you answered “YES” to Question 1, did Qorvo prove by a preponderance of the evidence that Akoustis was unjustly enriched by misappropriating Qorvo’s trade secret(s), and if so, state the amount of the unjust enrichment.

\$ _____

Willful or Malicious Conduct - Trade Secret Misappropriation

3. If you answered “YES” to Question 1, was Akoustis’s misappropriation of one or more of Qorvo’s trade secrets willful and malicious? *Please check “YES” or “NO” below. (A “YES” answer is a finding for Qorvo; a “NO” answer is a finding for Akoustis.)*

YES (Qorvo): _____

NO (Defendants): _____

Exemplary Damages – Misappropriation of Trade Secrets

4. If you answered “YES” to Questions 1 and 3, what amount of exemplary damages, if any, do you award to Qorvo against Akoustis? *The amount you award, if any, cannot exceed three times the amount of damages listed in response to Question 2.*

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UNFAIR AND DECEPTIVE TRADE PRACTICES ACT

Liability – Unfair and Deceptive Trade Practices Act

5. Has Qorvo proven by a preponderance of the evidence its Unfair and Deceptive Trade Practices Act claim against Akoustis? *Please check “YES” or “NO” below. (A “YES” answer is a finding for Qorvo; a “NO” answer is a finding for Defendants.)*

YES (Qorvo): _____

NO (Defendants): _____

Damages – Unfair and Deceptive Trade Practices Act

6. If you answered “YES” to Question 5, did Qorvo prove by a preponderance of the evidence damages caused by Akoustis’s action(s), and if so, state the amount.

\$_____

FALSE ADVERTISING

Liability - False Advertising

7. Has Qorvo proven by a preponderance of the evidence each of the elements of its False Advertising claim against Akoustis? *Please check "YES" or "NO" below. (A "YES" answer is a finding for Qorvo; a "NO" answer is a finding for Defendants.)*

YES (Qorvo): _____

NO (Defendants): _____

Damages – False Advertising

8. If you answered "YES" to Question 7, did Qorvo prove by a preponderance of the evidence damages caused by Akoustis's action(s), and if so, state the amount.

\$ _____

CIVIL CONSPIRACY

Liability - Civil Conspiracy

9. Has Qorvo proven by a preponderance of the evidence its Civil Conspiracy claim against Akoustis? *Please check "YES" or "NO" below. (A "YES" answer is a finding for Qorvo; a "NO" answer is a finding for Defendants.)*

YES (Qorvo): _____

NO (Defendants): _____

Damages – Civil Conspiracy

10. If you answered "YES" to Question 9, did Qorvo prove by a preponderance of the evidence damages for actual loss caused by Akoustis's action(s), and if so, state the amount.

\$ _____

PATENT INFRINGEMENT**Infringement**

11. Do you find that Qorvo has proven by a preponderance of the evidence that the claims of the '018 or the '755 Patents have been infringed? *Please check "YES" or "NO" below. (A "YES" answer is a finding for Qorvo; a "NO" answer is a finding for Defendants.)*

Patent Claim	YES (Qorvo)	NO (Akoustis)
'018 Patent, Claim 1		
'018 Patent, Claim 12		
'755 Patent, Claim 9		
'755 Patent, Claim 10		

Validity

12. If you answered "YES" to Question 11, do you find that Akoustis has proven by clear and convincing evidence that any claims of the '018 or '755 Patents are invalid as obvious in view of the prior art and the knowledge possessed by someone of ordinary skill in the relevant profession or industry? *Please check "YES" or "NO" below. (A "YES" answer is a finding for Akoustis; a "NO" answer is a finding for Qorvo.)*

Patent Claim	YES (Akoustis)	NO (Qorvo)
'018 Patent, Claim 1		
'018 Patent, Claim 12		
'755 Patent, Claim 9		
'755 Patent, Claim 10		

Willfulness

13. If you answered "YES" to Question 11 and "NO" to Question 12, was Akoustis's infringement of the '018 or '755 Patents willful? *Please check "YES" or "NO" below. (A "YES" answer is a finding for Qorvo; a "NO" answer is a finding for Defendants.)*

Patent Claim	YES (Qorvo)	NO (Akoustis)
'018 Patent, Claim 1		
'018 Patent, Claim 12		
'755 Patent, Claim 9		
'755 Patent, Claim 10		

Damages – Reasonable Royalty

14. If you answered “YES” to Question 11 and “NO” to Question 12, what is the total reasonable royalty to which Qorvo is entitled for Akoustis’s past infringement of the patents?

'018 Patent: \$_____

'755 Patent: \$_____

UNANIMOUS VERDICT

Upon reaching a unanimous verdict on each question above, each juror must sign below.

We, the jury, unanimously agree to the answers to the above questions and return them under the instructions of this Court as our verdict in this case.

[INSERT SIGNATURE BLOCKS FOR JURORS]

Dated: _____